



DOT-E 12617

EXPIRATION DATE: March 31, 2001

1. GRANTEE: Honeywell International, Inc.
Morristown, NJ
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the one-way, one-time transportation in commerce of nine DOT Specification 106A500 and 110A multi-unit tank car tanks that are below the minimum specified shell thickness. The multi-unit tank car tanks contain a spent catalyst which is toxic by inhalation. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: The marking requirement specified in § 172.302(c); and § 179.301(a) in that the shell thickness of the exempted tanks are less than the required minimum shell thickness.
5. BASIS: This emergency exemption is based on the application of Honeywell, dated January 16, 2001, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Toxic liquid, corrosive, inorganic, n.o.s. (Antimony pentachloride, arsenic trichloride)	6.1	UN3289	I, Hazard Zone B

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are three DOT Specification 105A500X and six DOT Specification 110A500W multi-unit tank car tanks manufactured by The Columbiana Boiler Company that are below the minimum required shell thickness.

b. OPERATIONAL CONTROLS -

(1) This exemption authorizes the one-way, one-time transportation from the Honeywell facility Baton Rouge, LA to the CNMI facility in Denver, CO.

(2) The shell thickness of each multi-unit tank car tank may not be less than 0.050 inch of the value specified in § 179.301(a).

(3) The pressure in each multi-unit tank car tank may not exceed 20 psig.

(4) All nine multi-unit tank car tanks must be offered and transported at the same time in an exclusive use motor vehicle.

(5) The multi-unit tank car tanks must be removed from service upon being emptied of the current contents.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at the Honeywell facility where the packages are offered for transportation.

b. The marking requirement of § 172.302(c) is waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

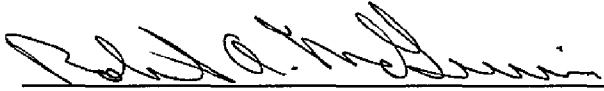
o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Acting Associate Administrator
for Hazardous Materials Safety

FEB 2 2001

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: PTolson